

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

10. KIMBERLY WALTS V. KEVIN WALTS

PFL20170517

On February 13, 2026, Respondent filed a Request for Order (RFO) seeking spousal support orders. He filed his Income and Expense Declaration concurrently therewith. All required documents, with the exception of the Notice of Tentative Ruling, were personally served on Petitioner on March 6th.

Petitioner has not filed a Responsive Declaration to Request for Order.

This is a post-judgment request for modification of permanent spousal support orders. As such, the court is required to take evidence on, and address, the Family Code § 4320 factors. The parties are ordered to appear to select dates for an evidentiary hearing.

TENTATIVE RULING #10: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING TO SELECT DATES FOR AN EVIDENTIARY HEARING.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 30, 2026
8:30 AM/1:30 PM

11. SCOTT YODER V. JENNIFER YODER

PFL20180901

On February 6, 2026, Petitioner filed a Request for Order (RFO) seeking child support, spousal support, and support arrears. He filed his Income and Expense Declaration concurrently therewith. He filed another Income and Expense Declaration on February 23rd. There is no Proof of Service for these documents. There is a Notice and Acknowledgment of Receipt, though it is signed by Respondent's attorney, not Respondent. This is a post-judgment request for support orders and therefore, service was required to comply with Family Code § 215.

Despite the defect in service, Respondent filed a Responsive Declaration to Request for Order and her Income and Expense Declaration on April 23rd. Both documents were served on April 21st.

Petitioner is requesting the reduction or termination of spousal support. He further requests \$6,365.34 in support arrears associated with the payments of expenses for the children.

Respondent opposes the requests. However, in the event the court is inclined to alter support, Respondent requests an evidentiary hearing. Finally, she asks for \$10,000 in attorney's fees pursuant to Family Code § 2030.

After reviewing the filings, the court finds that the issue regarding arrears requires the taking of additional evidence. Likewise, in facing a request to amend permanent spousal support, the court is required to take evidence on, and make findings regarding the Family Code § 4320 factors. As such, the parties are ordered to appear to select dates for an evidentiary hearing.

Regarding the request for attorney's fees, the public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." *In Re Marriage of Keech*, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. It "is not the redistribution of money from the greater income party to the lesser income party," but rather "parity." *Alan S. v. Sup. Ct.*, 172 Cal. App. 4th 238, 251 (2009). In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).